ACCO,(JDEx),CLOSED,DISCOVERY,MANADR,PROTORD

UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA (Southern Division - Santa Ana)
CIVIL DOCKET FOR CASE #: 8:22-cv-01727-FWS-JDE

Miguel Lerma, Jr. v. Amazon.com Services, LLC et al
Assigned to: Judge Fred W. Slaughter
Referred to: Magistrate Judge John D. Early
Demand: $5,000,000
Cause: 15:1681 Fair Credit Reporting Act

Date Filed: 09/21/2022
Date Terminated: 09/29/2023
Jury Demand: Plaintiff
Nature of Suit: 442 Civil Rights: Jobs
Jurisdiction: Federal Question

Plaintiff

Miguel Lerma, Jr.
individually and on behalf of all others similarly situated

represented by **Raymond Yoon Ho Kim**
Ray Kim Law, APC
112 East Amerige Avenue, Suite 240
Fullerton, CA 92832
833-729-5529
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LEAD ATTORNEY
ATTORNEY TO BE NOTICED

V.

Defendant

Amazon.com Services, LLC

represented by **Aleksandr Markelov**
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ATTORNEY TO BE NOTICED

Defendant

Amazon Logistics, Inc.

represented by **Aleksandr Markelov**
(See above for address)
ATTORNEY TO BE NOTICED

Andrew P Frederick
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Accurate Background, Inc. represented by **Jessica Rose Ellis Lohr**
4585 Cleveland Avenue
San Diego, CA 92116
520-238-1372
ATTORNEY TO BE NOTICED

Defendant

Does
1-5

Mediator (ADR Panel)

Hon Patricia Yim Cowett represented by **Patricia A Cowett**
ADR Services Inc
225 Broadway Suite 1400
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Email: patricia.cowett@gmail.com
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
09/21/2022	1	COMPLAINT Receipt No: ACACDC-34024021 - Fee: $402, filed by Plaintiff Miguel Lerma, Jr.. (Attorney Raymond Yoon Ho Kim added to party Miguel Lerma, Jr.(pty:pla)) (Kim, Raymond) (Entered: 09/21/2022)
09/21/2022	2	NOTICE of Interested Parties filed by Plaintiff Miguel Lerma, Jr., (Kim, Raymond) (Entered: 09/21/2022)
09/21/2022	3	CIVIL COVER SHEET filed by Plaintiff Miguel Lerma, Jr.. (Kim, Raymond) (Entered: 09/21/2022)
09/21/2022	4	Request for Clerk to Issue Summons on Complaint (Attorney Civil Case Opening) 1 filed by Plaintiff Miguel Lerma, Jr.. (Kim, Raymond) (Entered: 09/21/2022)
09/21/2022	5	Request for Clerk to Issue Summons on Complaint (Attorney Civil Case Opening) 1 filed by Plaintiff Miguel Lerma, Jr.. (Kim, Raymond) (Entered: 09/21/2022)
09/21/2022	6	Request for Clerk to Issue Summons on Complaint (Attorney Civil Case Opening) 1 filed by Plaintiff Miguel Lerma, Jr.. (Kim, Raymond) (Entered: 09/21/2022)
09/22/2022	7	NOTICE OF ASSIGNMENT to District Judge Fred W. Slaughter and Magistrate Judge John D. Early. (sh) (Entered: 09/22/2022)
09/22/2022	8	NOTICE TO PARTIES OF COURT-DIRECTED ADR PROGRAM filed. (sh) (Entered: 09/22/2022)
09/22/2022	9	Notice to Counsel Re Consent to Proceed Before a United States Magistrate Judge. (sh) (Entered: 09/22/2022)

09/22/2022	10	21 DAY Summons Issued re Complaint (Attorney Civil Case Opening) 1 as to Defendants Accurate Background, Inc., Amazon Logistics, Inc., Amazon.com Services, LLC. (Attachments: # 1 Amazon Logistics, # 2 Accurate Background) (sh) (Entered: 09/22/2022)
09/23/2022	11	CIVIL STANDING ORDER by Judge Fred W. Slaughter. (mku) (Entered: 09/23/2022)
10/21/2022	12	STIPULATION Extending Time to Answer the complaint as to Accurate Background, Inc. answer now due 11/23/2022, re Complaint (Attorney Civil Case Opening) 1 filed by Defendant Accurate Background, Inc..(Attorney Jessica Rose Ellis Lohr added to party Accurate Background, Inc.(pty:dft))(Lohr, Jessica) (Entered: 10/21/2022)
10/21/2022	13	NOTICE of Interested Parties filed by Defendant Accurate Background, Inc., (Lohr, Jessica) (Entered: 10/21/2022)
10/21/2022	14	STIPULATION for Extension of Time to File Response filed by Defendants Amazon Logistics, Inc., Amazon.com Services, LLC.(Attorney Andrew P Frederick added to party Amazon Logistics, Inc.(pty:dft), Attorney Andrew P Frederick added to party Amazon.com Services, LLC(pty:dft))(Frederick, Andrew) (Entered: 10/21/2022)
10/21/2022	15	*NOTICE AND* CERTIFICATE of Interested Parties filed by Defendants Amazon Logistics, Inc., Amazon.com Services, LLC, identifying Amazon.com Sales, Inc., Amazon.com, Inc.. (Frederick, Andrew) (Entered: 10/21/2022)
11/01/2022	16	PROOF OF SERVICE UNDER FRCP 5(b)(2)(D) Executed by Plaintiff Miguel Lerma, Jr., upon Defendant Accurate Background, Inc. served on 10/6/2022, answer due 11/23/2022. Service of the Summons and Complaint were executed upon the Clerks Office in compliance with Federal Rules of Civil Procedure. (Kim, Raymond) (Entered: 11/01/2022)
11/01/2022	17	PROOF OF SERVICE UNDER FRCP 5(b)(2)(D) Executed by Plaintiff Miguel Lerma, Jr., upon Defendant Service of the Summons and Complaint were executed upon the Clerks Office in compliance with Federal Rules of Civil Procedure. (Kim, Raymond) (Entered: 11/01/2022)
11/01/2022	18	PROOF OF SERVICE UNDER FRCP 5(b)(2)(D) Executed by Plaintiff Miguel Lerma, Jr., upon Defendant Service of the Summons and Complaint were executed upon the Clerks Office in compliance with Federal Rules of Civil Procedure. (Kim, Raymond) (Entered: 11/01/2022)
11/04/2022	19	NOTICE TO FILER OF DEFICIENCIES in Electronically Filed Document RE: Service of Summons and Complaint Returned Executed (21 days) 16 , Service of Summons and Complaint Returned Executed (21 days) 17 Service of Summons and Complaint Returned Executed (21 days) 18 .The following error(s) was/were found: (1) Incorrect statute prompt of FRCP 5(b)(2)(D) selected...service was NOT made on the Clerks Office of USDC. In response to this notice, the Court may: (1) order an amended or correct document to be filed; (2) order the document stricken; or (3) take other action as the Court deems appropriate. You need not take any action in response to this notice unless and until the Court directs you to do so. (jp) (Entered: 11/04/2022)
11/15/2022	20	First AMENDED COMPLAINT against Defendants AMAZON.COM SERVICES, LLC., AMAZON LOGISTICS, INC., ACCURATE BACKGROUND, LLC; Miguel Lerma, Jr. amending Complaint (Attorney Civil Case Opening) 1 , filed by Plaintiff Miguel Lerma, Jr. (Kim, Raymond) (Entered: 11/15/2022)
11/21/2022	21	STIPULATION for Extension of Time to File Response filed by Defendants Amazon Logistics, Inc., Amazon.com Services, LLC. (Attachments: # 1 Declaration of Andrew P. Frederick in Support of Stipulation, # 2 Proposed Order)(Frederick, Andrew) (Entered: 11/21/2022)

11/22/2022	22	ORDER RE STIPULATION EXTENDING DEFENDANTS' DEADLINE TO RESPOND TO FIRST AMENDED COMPLAINT AND SETTING BRIEFING SCHEDULE FOR DEFENDANTS' MOTIONS TO DISMISS 21 by Judge Fred W. Slaughter the following: (1) The deadline for Defendant Amazon.com Services LLC, Defendant Amazon Logistics, Inc., and Defendant Accurate Background, LLC to individually or collectively answer, move, otherwise respond, or file any Motion or Motions to Dismiss the First Amended Complaint isEXTENDED to and including 12/15/2022. See document for further information). (jp) (Entered: 11/22/2022)
12/15/2022	23	NOTICE OF MOTION AND MOTION to Dismiss First Amended Complaint filed by Defendant Accurate Background, Inc.. Motion set for hearing on 2/16/2023 at 10:00 AM before Judge Fred W. Slaughter. (Attachments: # 1 Memorandum of Points and Authorities, # 2 Exhibit A, # 3 Proposed Order, # 4 Request for Judicial Notice, # 5 Exhibit 1, # 6 Exhibit 2) (Lohr, Jessica) (Entered: 12/15/2022)
12/15/2022	24	NOTICE OF MOTION AND MOTION to Dismiss Plaintiffs' First and Fifth Claims in the First Amended Complaint filed by Defendants Amazon Logistics, Inc., Amazon.com Services, LLC. Motion set for hearing on 2/16/2023 at 10:00 AM before Judge Fred W. Slaughter. (Attachments: # 1 Memorandum of Points and Authorities in Support of Defendants' Motion to Dismiss Plaintiff's First and Fifth Claims in the First Amended Complaint, # 2 Request for Judicial Notice, # 3 Exhibit 1 to Request for Judicial Notice, # 4 Exhibit 2 to Request for Judicial Notice, # 5 Exhibit 3 to Request for Judicial Notice, # 6 Exhibit 4 to Request for Judicial Notice, # 7 Exhibit 5 to Request for Judicial Notice, # 8 Proposed Order) (Frederick, Andrew) (Entered: 12/15/2022)
12/19/2022	25	ORDER SETTING RULE 26(f) SCHEDULING CONFERENCE by Judge Fred W. Slaughter. Scheduling Conference set for 3/16/2023 at 9:00 a.m. See Order for details. (mku) (Entered: 12/19/2022)
01/19/2023	26	MEMORANDUM in Opposition to NOTICE OF MOTION AND MOTION to Dismiss First Amended Complaint 23 , NOTICE OF MOTION AND MOTION to Dismiss Plaintiffs' First and Fifth Claims in the First Amended Complaint 24 filed by Plaintiff Miguel Lerma, Jr.. (Kim, Raymond) (Entered: 01/19/2023)
02/02/2023	27	REPLY IN SUPPORT OF NOTICE OF MOTION AND MOTION to Dismiss Plaintiffs' First and Fifth Claims in the First Amended Complaint 24 filed by Defendants Amazon Logistics, Inc., Amazon.com Services, LLC. (Frederick, Andrew) (Entered: 02/02/2023)
02/02/2023	28	REPLY in support of NOTICE OF MOTION AND MOTION to Dismiss First Amended Complaint 23 filed by Defendant Accurate Background, Inc.. (Attachments: # 1 Declaration of Jessica Lohr)(Lohr, Jessica) (Entered: 02/02/2023)
02/13/2023	29	SCHEDULING NOTICE by Judge Fred W. Slaughter: Before the court is Defendant's Motion to Dismiss Plaintiffs' First and Fifth Claims in the First Amended Complaint 24 . The court finds this matter appropriate for decision without oral argument. See Fed. R. Civ. P. 78(b); C.D. Cal. R. 7-15. Accordingly, the hearing set for February 16, 2023, at 10:00 a.m. is VACATED/OFF CALENDAR and the court takes the matter UNDER SUBMISSION. THERE IS NO PDF DOCUMENT ASSOCIATED WITH THIS ENTRY. TEXT ONLY ENTRY. THERE IS NO PDF DOCUMENT ASSOCIATED WITH THIS ENTRY. (dgo) TEXT ONLY ENTRY (Entered: 02/13/2023)
02/14/2023	30	SCHEDULING NOTICE by Judge Fred W. Slaughter: Before the court is Defendant's Motion to Dismiss First Amended Complaint 23 . The court finds this matter appropriate for decision without oral argument. See Fed. R. Civ. P. 78(b); C.D. Cal. R. 7-15. Accordingly, the hearing set for February 16, 2023, at 10:00 a.m. is VACATED/OFF CALENDAR and the court takes the matter UNDER SUBMISSION. THERE IS NO PDF

		DOCUMENT ASSOCIATED WITH THIS ENTRY. (dgo) TEXT ONLY ENTRY (Entered: 02/14/2023)
03/02/2023	31	RESPONSE IN SUPPORT *re: Order re Scheduling Conference* filed by Plaintiff Miguel Lerma, Jr.. (Kim, Raymond) (Entered: 03/02/2023)
03/03/2023	32	STIPULATION for Extension of Time to File Plaintiff's Motion for Class Certification filed by Defendants Amazon Logistics, Inc., Amazon.com Services, LLC. (Attachments: # 1 Declaration of Andrew P. Frederick, # 2 Proposed Order)(Frederick, Andrew) (Entered: 03/03/2023)
03/06/2023	33	MINUTES SCHEDULING ORDER by Judge Fred W. Slaughter: The Court, having reviewed the pleadings and the parties' submissions pursuant to FRCP 26(f), VACATES the Scheduling Conference set for 3/16/2023 and sets the following schedule: Jury Trial set for 5/9/2024 at 8:30 AM. Final Pretrial Conference and Hearing on Motions in Limine set for 5/9/2024 at 8:30 AM. Last Date to Hear Motion to Amend Pleadings/Add Parties: 6/1/2023. Non-Expert Discovery Cut-Off: 11/9/2023. Last Date to Hear Motions: 2/15/2024. Deadline to Complete Settlement Conference: 2/29/2024. Motions in Limine with Proposed Orders: 4/18/2024. Joint Proposed Final Pretrial Conference Order: 4/25/2024. (See document for further information). (jp) (Entered: 03/07/2023)
03/07/2023	34	ORDER ON PRETRIAL AND TRIAL PROCEDURES (CIVIL CASES) by Judge Fred W. Slaughter. (mku) (Entered: 03/07/2023)
03/08/2023	35	ORDER RE STIPULATION REGARDING BRIEFING SCHEDULE FOR PLAINTIFF'S MOTION FOR CLASS CERTIFICATION 32 by Judge Fred W. Slaughter, re Stipulation for Extension of Time to File, 32 the court ORDERS the March 6, 2023, Scheduling Order 33 MODIFIED to read as follows (with changes indicated by italics): NOTE CHANGES MADE BY THE COURT. See document for details. (es) (Entered: 03/09/2023)
05/26/2023	36	MINUTES ORDER GRANTING Defendants' Motions to Dismiss 23 , 24 by Judge Fred W. Slaughter: The court GRANTS the Motions and DISMISSES WITHOUT PREJUDICE the first cause of action (violation of Megans Law), fourth cause of action (violation of FCRA), and fifth cause of action (violation of the UCL) of the FAC. Plaintiff must file a Second Amended Complaint, if any, within thirty (30) days of the date of notice of this Order. (jp) (Entered: 05/26/2023)
06/23/2023	37	STIPULATION REGARDING SELECTION of Panel Mediator filed. Parties stipulate that Hon. Patricia Cowett may serve as Panel Mediator. Plaintiff obtained the Panel Mediators consent to serve. All parties and the Panel Mediator have agreed that the mediation will be held on 8/9/2023 and counsel will submit mediation statements seven (7) calendar days before the session. Filed by Plaintiff Miguel Lerma, Jr.(Kim, Raymond) (Entered: 06/23/2023)
06/26/2023	38	NOTICE OF ASSIGNMENT of Panel Mediator. Mediator (ADR Panel) Patricia Yim Cowett has been assigned to serve as Panel Mediator. (lst) (Entered: 06/26/2023)
07/20/2023	39	Joint APPLICATION for Protective Order for Governing Confidential Information filed by Plaintiff Miguel Lerma, Jr.. (Kim, Raymond) (Entered: 07/20/2023)
07/24/2023	40	STIPULATED PROTECTIVE ORDER by Magistrate Judge John D. Early. re 39 (mba) (Entered: 07/24/2023)
07/24/2023	41	Notice of Appearance or Withdrawal of Counsel: for attorney Jessica Rose Ellis Lohr counsel for Defendant Accurate Background, Inc.. Jessica Lohr will no longer receive service of documents from the Clerks Office for the reason indicated in the G-123 Notice. Filed by Defendant Accurate Background, LLC. (Lohr, Jessica) (Entered: 07/24/2023)

07/27/2023	42	NOTICE TO FILER OF DEFICIENCIES in Electronically Filed Document RE: Notice of Appearance or Withdrawal of Counsel (G-123), 41 . The following error(s) was/were found: Party has not been dismissed from case. In response to this notice, the Court may: (1) order an amended or correct document to be filed; (2) order the document stricken; or (3) take other action as the Court deems appropriate. You need not take any action in response to this notice unless and until the Court directs you to do so. (ak) (Entered: 07/27/2023)
08/03/2023	43	MINUTE (IN CHAMBERS) Order to Show Cause re Dismissal for Lack of Prosecution by Judge Fred W. Slaughter: The court hereby ORDERS Plaintiff to show cause in writing no later than 8/18/2023, why this action should not be dismissed for lack of prosecution. (See document for further information). (jp) (Entered: 08/03/2023)
08/14/2023	44	RESPONSE filed by Plaintiff Miguel Lerma, Jr.to Order to Show Cause, 43 *Why Action Should Not Be Dismissed For Lack of Prosecution* (Kim, Raymond) (Entered: 08/14/2023)
08/23/2023	45	ANSWER to Amended Complaint/Petition 20 *(Plaintiff's First Amended)* filed by Defendants Amazon Logistics, Inc., Amazon.com Services, LLC.(Frederick, Andrew) (Entered: 08/23/2023)
09/21/2023	46	NOTICE of Settlement filed by Defendants Amazon Logistics, Inc., Amazon.com Services, LLC. (Frederick, Andrew) (Entered: 09/21/2023)
09/29/2023	47	MINUTES (IN CHAMBERS) ORDER DISMISSING ACTION ON NOTICE OF SETTLEMENT by Judge Fred W. Slaughter: The Court, having been notified by a Notice of Settlement 46 that the case settled, hereby orders this action dismissed without prejudice. The Court hereby orders all proceedings in the case vacated and taken off calendar. The Court retains jurisdiction for thirty (30) days to vacate this order and to reopen the action upon showing of good cause that the settlement has not been completed. This order shall not prejudice any party in this action. (Made JS-6. Case Terminated.) (jp) Modified on 11/3/2023 (jp). (Entered: 10/02/2023)
10/26/2023	48	STIPULATION to Dismiss Case pursuant to FRCP 41(a)(1)(A)(ii) filed by Defendants Amazon Logistics, Inc., Amazon.com Services, LLC.(Frederick, Andrew) (Entered: 10/26/2023)

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